

IN THE CIRCUIT COURT OF THE TWENTIETH JUDICIAL CIRCUIT
IN AND FOR LEE COUNTY, FLORIDA
CIVIL DIVISION

ARTHUR MILLER,
an individual,

Plaintiff,

v.

SAMUEL KAUFMAN,
an individual,

Defendant.

CASE NO.

DIVISION:

AMENDED COMPLAINT AND DEMAND FOR JURY TRIAL

(Amended to correct caption)

Plaintiff, ARTHUR MILLER (“Plaintiff”), by and through the undersigned counsel,
hereby sues Defendant, SAMUEL KAUFMAN (“Defendant”), and states as follows:

JURISDICTIONAL STATEMENT AND IDENTIFICATION OF PARTIES

1. This is a negligence action for compensatory damages exceeding Thirty Thousand Dollars (\$30,000.00) exclusive of costs and interest.
2. At all times material hereto, Plaintiff was a resident of Lee County, Florida.
3. At all times material hereto, Defendant was a resident of Chesterfield County, Virginia.
4. Because the motor vehicle collision described in this Complaint occurred in Lee County, Florida, venue is proper in Lee County pursuant to §47.011, *Florida Statutes*.

GENERAL FACTUAL ALLEGATIONS

Plaintiff re-alleges paragraphs one (1) through four (4) as though fully set forth herein and further states as follows:

5. At all times mentioned in this Complaint, Defendant owned and operated a vehicle described as a 2018 Mercedes, tag number UTH3251, which was registered in the state of Virginia.

6. Plaintiff was the properly restrained driver of a vehicle described as a 2016 Nissan Altima, tag number [REDACTED]

7. At all times mentioned in this Complaint, Defendant held a diver license issued by the state of Virginia using the roads of the state of Florida.

8. On December 31, 2020, Defendant was traveling east on Colonial Boulevard approaching the on-ramp for I75 to Tampa. Plaintiff was in the westbound turn lane to turn south onto I75 to Naples.

9. Defendant became confused and didn't observe the entrance lane had a solid red light.

10. Plaintiff was proceeding onto the south bound on-ramp when Defendant negligently struck Plaintiff's vehicle.

11. As a result of the crash, Plaintiff suffered serious injuries.

**COUNT I – PLAINTIFF'S CLAIM FOR NEGLIGENCE
AGAINST DEFENDANT**

Plaintiff re-alleges paragraphs one (1) through eleven (11) as though fully set forth herein, and further states as follows:

12. Defendant had a duty to operate his automobile in a safe and reasonable manner.

13. Defendant breached the duty to operate his automobile in a safe and reasonable manner by colliding with the vehicle in which the Plaintiff was traveling, and by:

- a. Failing to operate the vehicle in a reasonably careful way, considering the traffic conditions and all other relevant circumstances, so as to ensure the safety of others on the roadway, such as Plaintiff, or others reasonably anticipated to be on the roadway, whether as drivers or passengers;
- b. Failing to keep a reasonable lookout for other vehicles and failing to properly be aware of other vehicles, like the one in which Plaintiff was the driver, and others reasonably anticipated to be on the roadway;
- c. Failing to keep and maintain proper control of the vehicle;
- d. Failing to exercise caution in traffic with other vehicles, like the one of which Plaintiff was the driver, and others reasonably anticipate being on the roadway; and
- e. Failing to take appropriate and necessary evasive action under the circumstances.

14. As a direct and proximate result of Defendant's negligence, Plaintiff suffered serious bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity to enjoy life, expenses of hospitalization, of medical and nursing care and treatment, loss of earnings and ability to earn a living. The losses are permanent and/or continuing and Plaintiff will suffer losses in the future.

WHEREFORE, Plaintiff requests judgment against Defendant, SAMUEL KAUFMAN, for damages in a sum within the jurisdictional limits of this court, together with costs of suit and such further relief as the court deems proper. Plaintiff demands a trial by jury.

Respectfully Submitted,



Date: 05/09/2022

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